

Section 11 in The Protection of Children from Sexual Offences Act, 2012

11. Sexual harassment.—

A person is said to commit sexual harassment upon a child when such person with sexual intent,—(i) utters any word or makes any sound, or makes any gesture or exhibits any object or part of body with the intention that such word or sound shall be heard, or such gesture or object or part of body shall be seen by the child; or(ii) makes a child exhibit his body or any part of his body so as it is seen by such person or any other person; or(iii) shows any object to a child in any form or media for pornographic purposes; or(iv) repeatedly or constantly follows or watches or contacts a child either directly or through electronic, digital or any other means; or(v) threatens to use, in any form of media, a real or fabricated depiction through electronic, film or digital or any other mode, of any part of the body of the child or the involvement of the child in a sexual act; or(vi) entices a child for pornographic purposes or gives gratification therefor. Explanation.— Any question which involves “sexual intent” shall be a question of fact.